

LAW & MOTION TENTATIVE RULINGS
DEPARTMENT 5
May 14, 2026
8:30 a.m./1:30 p.m.

4. DAVID LEE HUIBREGTSE V. ANA HUIBREGTSE

23FL0895

On March 4, 2026, Petitioner filed a Request for Order (RFO) seeking to withdraw funds held in trust. He filed his Income and Expense Declaration on April 21, 2026. All required documents were served on April 20th with the exception of the Notice of Tentative Ruling.

Respondent filed and served her Responsive Declaration to Request for Order on April 27th.

On May 5th, Petitioner filed a Declaration of Jordan Porterfield in Opposition to Respondent's Request to Deny Petitioner's Request to Withdraw Funds.

Petitioner, by and through his daughter who has durable power of attorney, is requesting to withdraw \$30,000 from the home sale funds which are currently held in trust by Respondent's counsel.

Respondent opposes the requested withdrawal, however, if the court does grant Petitioner's request, then Respondent asks that she be allowed to withdraw the same amount.

After reviewing the filings, the court finds it prudent to allow each party to withdraw a portion of their community property share of the funds held in trust from the sale of the marital residence. Accordingly, Petitioner and Respondent may each withdraw \$30,000 from the trust funds. The court reserves jurisdiction over the characterization of these funds until the time of trial on the issue of division of community property.

Petitioner is directed to prepare the Findings and Orders After Hearing (FOAH); however, this order is effective immediately upon the court's adoption of the tentative ruling and is not conditioned on the preparation of the FOAH.

TENTATIVE RULING #4: PETITIONER AND RESPONDENT MAY EACH WITHDRAW \$30,000 FROM THE TRUST FUNDS. THE COURT RESERVES JURISDICTION OVER THE CHARACTERIZATION OF THESE FUNDS UNTIL THE TIME OF TRIAL ON THE ISSUE OF DIVISION OF COMMUNITY PROPERTY.

PETITIONER IS DIRECTED TO PREPARE THE FINDINGS AND ORDERS AFTER HEARING (FOAH); HOWEVER, THIS ORDER IS EFFECTIVE IMMEDIATELY UPON THE COURT'S ADOPTION OF THE TENTATIVE RULING AND IS NOT CONDITIONED ON THE PREPARATION OF THE FOAH.

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NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR BY PHONE CALL TO THE COURT AT (530) 621-6725 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07; *SEE ALSO LEWIS V. SUPERIOR COURT*, 19 CAL.4TH 1232, 1247 (1999). NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY PHONE CALL OR IN PERSON BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07.